

		also concedes "Defendants have only partially cut off [his] access" to partnership materials. (Lobas Decl. ¶ 51.) There is no evidence Plaintiff's limited access has impeded his ability to manage his ongoing deals. The Court finds that Plaintiff's request for a mandatory injunction requiring Defendants to distribute profits of 30% to Plaintiff is unwarranted. The Court also finds Plaintiff has not shown irreparable harm in restricted access to partnership materials. However, the Court finds the balancing of harms weighs in favor of granting a preliminary injunction prohibiting Defendants from distributing 22.5% of Plaintiff's claimed partnership profits to themselves. The motion is therefore GRANTED, in part, and DENIED, in part, accordingly. Bond: If a preliminary injunction is granted, the court must require an undertaking. (Code of Civil Procedure section 995.710.) The amount of the bond is to cover any damage to the defendant caused by issuance of the injunction, if it is finally determined that plaintiff was not entitled to the injunction. (Code of Civ. Proc. § 529.) Defendants' demand for a \$500,000 bond is arbitrary and not supported by any evidentiary showing of Defendants' likely damages. (Oiyee v. Fox (2012) 211 Cal.App.4th 1036, 1062 [nominal bond of \$1,000 appropriate in the absence of evidentiary showing of enjoined parties' probable damages].) Plaintiff agrees to a \$15,000 bond, which the Court finds is appropriate. Counsel for Plaintiff shall give notice of this ruling.
6.	George v. Brothers International Desserts 25-15147683	Defendant Brothers International Desserts' Motion to Compel Arbitration is DENIED. In order for an arbitration agreement to be enforceable, each party must agree to it. [Federal Arbitration Act, 9 U.S.C.A. §2] In Opposition to the Motion, plaintiff George says there was no agreement because the electronic documents, including his signature, do not establish it. After a careful review of all evidence and argument submitted by the parties, the Court concludes that that defendant's motion fails for one, unexplained reason. Defendants identify two different email addresses for transactions concerning the agreement without saying why. The Motion says alonzogeorge@brothersdesserts.com. The Reply says alonzog51@gmail.com. This unexplained discrepancy does not allow the Court to conclude an agreement had been shown. All objections are OVERRULED. All testimony has been considered. <i>Moving party shall give notice.</i>
7.	Phillips v. LMC Costa Mesa Holdings, LP	The Demurrer filed on 5/8/26 by City of Costa Mesa, sued as Costa Mesa Police Department ("City"), is SUSTAINED with 15 days leave to amend. The Court construes the Demurrer as directed to the First Amended Complaint (incorrectly titled as a "Motion To Amend Complaint For Negligence and Property Damages") filed by Plaintiff Daniel Nicole Phillips ("Plaintiff") on 1/7/25 (the "FAC").

		The FAC fails to state a cognizable claim against City and is uncertain. It fails to specify, for each cause of action, which is directed to which defendant(s), and what facts support the claim as to each defendant. Nor does the FAC articulate any cogent claim as to City. To state a cause of action against a public entity, every fact essential to the existence of statutory liability must be pleaded with particularity. (<i>Searcy v. Hemet Unified School Dist.</i> (1986) 177 Cal.App.3d 792, 802.) Plaintiff has failed to meet those requirements in her FAC. In addition, the FAC fails to state facts demonstrating compliance with the Tort Claims Act, which requires that any civil complaint against a public entity for money or damages first be timely presented to and rejected by the pertinent public entity. (<i>Munoz v. State of California</i> (1995) 33 Cal.App.4th 1767, 1776.) Each theory of recovery against the public entity must have been reflected in a timely claim, and the factual circumstances set forth in the claim must correspond with those alleged in the complaint. (<i>Id.</i>) Failure to allege facts demonstrating or excusing compliance with the claim presentation requirement subjects a claim against a public entity to a demurrer for failure to state a cause of action. (<i>State of California v. Superior Court</i> (2004) 32 Cal.4th 1234, 1239.) Here, the FAC does not attempt to assert compliance with these requirements. City's demurrer is therefore SUSTAINED, as to the entire FAC, with 15 days leave to amend. <i>Counsel for City is to give notice of this ruling.</i>
8.	Talbot v. Talbot 26-1547132	A) Demurrer Defendants Gail C. Talbot and Matthew Talbot's ("Defendants" together) unopposed demurrer is OVERRULED. There are numerous issues with this pleading. It is titled as a demurrer yet there is no actual separate demurrer as required under <i>California Rules of Court, Rule 3.1320</i>. The pleading also appears to improperly request the court strike various damages from plaintiffs Lauren Talbot and Paul Hopkins Talbot, III's ("Plaintiffs" together) First Amended Complaint ("FAC") in the body of the pleading. All of these damages were not identified in the notice of the pleading, even if the pleading itself is improper. The function of a demurrer is to test the legal sufficiency of a cause of action, and not to strike damages. (<i>Civ. Proc. Code § 430.10; Venice Town Council, Inc. v. City of Los Angeles</i> (1996) 47 Cal. App. 4th 1547, 1562.) Defendants have not alleged any proper basis for a demurrer. It is also unclear if Defendants are demurring to the original complaint or the FAC as the pleading repeatedly refers to "Complaint, Prayer ¶ 5, p. 6." The FAC, which was served 21-days prior to this motion being filed (ROA 17), does not have any prayer on page 6. The original complaint, which is not the operative pleading in this matter, does contain a prayer on page 6.